



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 36022908

Date: JAN. 16, 2025

Appeal of Nebraska Service Center Decision

Form I-140, Immigrant Petition for Alien Workers (Extraordinary Ability)

The Petitioner, a music composer, seeks classification as an individual of extraordinary ability. *See* Immigration and Nationality Act (the Act) section 203(b)(1)(A), 8 U.S.C. § 1153(b)(1)(A). This first preference classification makes immigrant visas available to those who can demonstrate their extraordinary ability through sustained national or international acclaim and whose achievements have been recognized in their field through extensive documentation.

The Director of the Nebraska Service Center denied the petition, concluding the Petitioner did not receive a one-time achievement or satisfy at least three of the initial evidentiary criteria. The matter is now before us on appeal. 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

Section 203(b)(1)(A) of the Act makes visas available to immigrants with extraordinary ability if:

- (i) the alien has extraordinary ability in the sciences, arts, education, business, or athletics which has been demonstrated by sustained national or international acclaim and whose achievements have been recognized in the field through extensive documentation,
- (ii) the alien seeks to enter the United States to continue work in the area of extraordinary ability, and
- (iii) the alien's entry into the United States will substantially benefit prospectively the United States.

The term “extraordinary ability” refers only to those individuals in “that small percentage who have risen to the very top of the field of endeavor.” 8 C.F.R. § 204.5(h)(2). The implementing regulation at 8 C.F.R. § 204.5(h)(3) sets forth a multi-part analysis. First, a petitioner can demonstrate sustained acclaim and the recognition of achievements in the field through a one-time achievement (that is, a major, internationally recognized award) or qualifying documentation that meets at least three of the ten categories listed at 8 C.F.R. § 204.5(h)(3)(i) – (x) (including items such as awards, published material in certain media, and scholarly articles).

Where a petitioner meets these initial evidence requirements, we then consider the totality of the material provided in a final merits determination and assess whether the record shows sustained national or international acclaim and demonstrates that the individual is among the small percentage at the very top of the field of endeavor. *See Kazarian v. USCIS*, 596 F.3d 1115 (9th Cir. 2010) (discussing a two-part review where the documentation is first counted and then, if fulfilling the required number of criteria, considered in the context of a final merits determination); *see also Visinscaia v. Beers*, 4 F. Supp. 3d 126, 131-32 (D.D.C. 2013); *Rijal v. USCIS*, 772 F. Supp. 2d 1339 (W.D. Wash. 2011).

II. ANALYSIS

Because the Petitioner has not indicated or established receipt of a major, internationally recognized award, he must satisfy at least three of the alternate regulatory criteria at 8 C.F.R. § 204.5(h)(3)(i)-(x). The Petitioner initially claimed to have satisfied five of these criteria, but the Director determined the Petitioner fulfilled only the published material criterion at 8 C.F.R. § 204.5(h)(3)(iii) and the leading or critical role criterion at 8 C.F.R. § 204.5(h)(3)(viii). On appeal, the Petitioner maintains that he also meets the awards criterion at 8 C.F.R. § 204.5(h)(3)(i) and the display criterion at 8 C.F.R. § 204.5(h)(3)(vii).¹

A. Evidentiary Criteria

1. Awards

The regulation at 8 C.F.R. § 204.5(h)(3)(i) requires “[d]ocumentation of the alien’s receipt of lesser nationally or internationally recognized prizes or awards for excellence in the field of endeavor.”

On appeal, the Petitioner contends that his award for “Best Original Song” at the [REDACTED] Awards monthly international film festival meets this criterion.² He states that “[t]he [REDACTED] Awards is an international film competition that recognizes and celebrates excellence in independent filmmaking from around the world.” The Petitioner further asserts that this “competition aims to

¹ In his appeal brief, the Petitioner does not contest the Director’s findings that he did not meet the judging criterion at 8 C.F.R. § 204.5(h)(3)(iv) and therefore he has not overcome the Director’s determination on this issue. We consider the Petitioner’s prior eligibility claims not raised or contested on appeal to be abandoned. An issue not raised on appeal is waived. *See, e.g., Matter of O-R-E-*, 28 I&N Dec. 330, 336 n.5 (BIA 2021) (citing *Matter of R-A-M-*, 25 I&N Dec. 657, 658 n.2 (BIA 2012)).

² The Petitioner does not contest the Director’s findings relating to other awards he previously claimed to receive or maintain on appeal that those awards meet this criterion.

support emerging filmmakers by providing a platform for their work to gain visibility and recognition.”

The Petitioner’s appellate submission includes material from the [redacted] Awards website listing its [redacted] 2023 winners, 35 award categories, and rules of entry.³ He also presents material promoting the [redacted] Awards on FilmFreeway, a website filmmakers can use to submit their films to hundreds of film festivals globally.⁴ The information from both the [redacted] Awards and Film Freeway websites is insufficient to show that the Petitioner’s “Best Original Song” award garnered sufficient recognition beyond the context of the monthly film festival where it was presented. The Petitioner has not demonstrated the significance of his specific award in the field of endeavor or that it has received media coverage or other attention that rises to the level of national or international recognition. Without further evidence regarding its national or international significance in his field, the Petitioner has not demonstrated that his award for “Best Original Song” at the [redacted] Awards is a nationally or internationally recognized prize or award for excellence in the field. Accordingly, the Petitioner has not established he satisfies this criterion.

2. Display

The regulation at 8 C.F.R. § 204.5(h)(3)(vii) requires “[e]vidence of the display of the alien’s work in the field at artistic exhibitions or showcases.”

As evidence for this criterion, the Petitioner submitted Netflix webpages pertaining to the films, [redacted] and [redacted] accompanied by “Full Cast & Crew” information from IMDb.com, which lists both films’ “Music by [the Petitioner].” With the appeal, the Petitioner provides an October 2024 letter from W-S-, film director at [redacted] stating that the Petitioner worked “as the composer for my film[s], [redacted] (2021) and [redacted] (2023). In this role, [the Petitioner] was responsible for composing the original music score, which significantly contributed to the overall atmosphere, emotional depth, and storytelling of the film[s].” W-S- further asserted that the Petitioner’s work contributed to the films’ “exhibition and reception, both at Netflix and across public platforms.” While the Director’s decision acknowledged that the Petitioner contributed to the musical component of the films, it concluded that his work as a musician or composer was not “on display” and therefore did not meet the plain language of this criterion.⁵

The Petitioner maintains on appeal that his musical compositions for films (such as [redacted] and [redacted]) that streamed on Netflix meet this criterion. He states:

I respectively submit that streaming platforms such as Netflix serve as prominent, public exhibition venues in today’s digital age. Films streamed on these platforms reach millions of viewers globally, serving as modern equivalents to traditional theaters and galleries. The films I composed music for, including [redacted] (2023), [redacted]

³ The [redacted] Awards’ rules state that “[e]ntry fees are non-refundable,” “[m]ultiple entries are allowed for each filmmaker,” and “[y]ou can submit your work how many times you want.”

⁴ The FilmFreeway website includes a “Submit Now” button and lists the [redacted] Awards’ categories, rules, terms of entry, and user reviews.

⁵ The Petitioner’s appeal does not contest the Director’s findings relating to the other evidence submitted for this criterion.

[redacted] (2021), are displayed to the public on a global scale, providing significant visibility for my work as a composer.

The Petitioner's appellate submission includes an article, entitled "How Netflix Expanded to 190 Countries in 7 Years," which discusses the streaming platform's global growth and market reach. He also provides two online reviews of [redacted] that were posted in July and September of 2023 on the film's IMDb.com webpage, one of which compliments the film's music.

Merriam-Webster's online dictionary defines "display" as "to place or spread (something) for people to see" and "to serve as a place for displaying (something)." The Petitioner's music work for [redacted] and [redacted] is an artistic component of these films that is heard but not seen or displayed. Therefore, the Petitioner did not demonstrate that he displayed his musical contributions in the films consistent with the language of the regulation under 8 C.F.R. § 204.5(h)(3)(vii). We consider the term "display" using its ordinary, common meaning. *See, e.g., Perrin v. United States*, 444 U.S. 37, 42 (1979) ("A fundamental canon of statutory construction is that, unless otherwise defined, words will be interpreted as taking their ordinary, contemporary, common meaning . . ."). In addition, the Petitioner has not shown that his specific work product was being displayed as the subject of an artistic exhibition or showcase on the Netflix streaming platform. As such, the Petitioner has not established he fulfills this criterion.

B. Summary and Reserved Issue

The Petitioner meets the published material and leading or critical role criteria, but he has not established he satisfies the criteria relating to awards and display. Because the Petitioner's inability to meet three of the initial criteria is dispositive of his appeal, we need not provide the type of final merits determination referenced in *Kazarian*, 596 F.3d at 1119-20. We therefore reserve this issue.⁶

Nevertheless, we have reviewed the record in the aggregate, concluding it does not support a conclusion that the Petitioner has established the acclaim and recognition required for the classification sought. The Petitioner seeks a highly restrictive visa classification, intended for individuals already at the top of their respective fields, rather than those progressing toward the top. *Matter of Price*, 20 I&N Dec. at 954 (concluding that even major league level athletes do not automatically meet the statutory standards for classification as an individual of "extraordinary ability,"); *Visinscaia*, 4 F. Supp. 3d at 131 (internal quotation marks omitted) (finding that the extraordinary ability designation is "extremely restrictive by design,"); *Hamal v. Dep't of Homeland Sec. (Hamal II)*, No. 19-cv-2534, 2021 WL 2338316, at *5 (D.D.C. June 8, 2021), *aff'd*, 2023 WL 1156801 (D.C. Cir. Jan. 31, 2023) (determining that EB-1 visas are "reserved for a very small percentage of prospective immigrants"). *See also Hamal v. Dep't of Homeland Sec. (Hamal I)*, No. 19-cv-2534, 2020 WL 2934954, at *1 (D.D.C. June 3, 2020) (citing *Kazarian*, 596 at 1122 (upholding denial of petition of a published theoretical physicist specializing in non-Einsteinian theories of gravitation) (stating that "[c]ourts have found that even highly accomplished individuals fail to win this designation")); *Lee v. Ziglar*, 237 F. Supp. 2d 914, 918 (N.D. Ill. 2002) (finding that "arguably one of the most famous baseball players in Korean history" did not qualify for visa as a baseball coach). Here, the Petitioner has not shown the

⁶ *See INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (per curiam) (holding that agencies are not required to make "purely advisory findings" on issues that are unnecessary to the ultimate decision).

significance of his work is indicative of the required sustained national or international acclaim or it is consistent with a “career of acclaimed work in the field” as contemplated by Congress. H.R. Rep. No. 101-723, 59 (Sept. 19, 1990); *see also* section 203(b)(1)(A) of the Act. Moreover, the record does not otherwise demonstrate the Petitioner has garnered national or international acclaim in the field, and he is one of the small percentage who has risen to the very top of the field of endeavor. *See* section 203(b)(1)(A) of the Act and 8 C.F.R. § 204.5(h)(2).

III. CONCLUSION

For the reasons discussed above, the Petitioner has not demonstrated eligibility as an individual of extraordinary ability. The appeal will be dismissed for the above stated reasons, with each considered as an independent and alternate basis for the decision.

ORDER: The appeal is dismissed.